

period by which the term of office of an alderman of a municipal borough is extended, and except the provisions of paragraph (10) relating to the revision of jurors lists in Ireland, shall be deemed to be incorporated in this section as though they were set out therein, and expressly made applicable to the provisions thereof.

Short title.

3. This Act may be cited as the *Parliament and Local Elections Act, 1918.*

CHAPTER 23.

An Act to limit the right to a jury in certain civil cases, to raise the age for jury service, to amend the Law with respect to the preparation and publication of jury lists, and to enable coroners' inquests in certain cases to be held without a jury. [30th July 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Limitation
of jury trials
in the High
Court.

1. Subject to the provisions of this Act every action, counter-claim, issue, cause, or matter, in the High Court in England requiring to be tried shall be tried by a judge alone without a jury :

Provided that—

- (a) nothing in this section shall affect any power to order a trial by two or more judges or by a judge sitting with assessors, or by an official or special referee with or without assessors, or by an officer of the court; and
- (b) in the case of any action, counter-claim, issue, cause, or matter in which fraud is alleged or in which there is a claim in respect of libel, slander, malicious prosecution, false imprisonment, seduction, or breach of promise of marriage, either party shall on making application for the purpose in accordance with rules of court be entitled as of right to a trial with a jury; and
- (c) if it appears to the court or a judge that any action, counter-claim, cause, or matter or any question or issue therein, is more fit to be tried with a jury than without a jury, the court or a judge may, on an application for the purpose made by any party in accordance with rules of court, order accordingly; and
- (d) nothing in this section shall affect the right of any party under section twenty-eight of the Matrimonial

- * Causes Act, 1857, to insist on having contested matters of fact tried with a jury, or the right of an heir at law, cited to appear in or otherwise made a party to a probate action, to a trial with a jury if he makes an application for the purpose in accordance with rules of court. 20 & 21 Vict. c. 85.

2. Notwithstanding any provision in any rules of court directing that on a judgment in default of appearance or defence a writ of enquiry shall issue to assess the damages or value of goods and damages, or either of them, or any mesne profits, arrears of rent, double value or damages, such a writ shall not issue without the leave of the court or a judge, and, where such leave is not given, the damages, value, mesne profits or arrears shall be assessed by a master or a district registrar, or in such other manner as the court or a judge may direct: Assessment of damages.

Provided that where the claim is in respect of fraud, slander, malicious prosecution, false imprisonment, seduction, or breach of promise of marriage, either party shall, on application made in accordance with rules of court, be entitled to insist on the issue of a writ of enquiry.

3. Notwithstanding anything in section one hundred and one of the County Courts Act, 1888, it shall not be lawful for any party in the County Court in England (including the City of London Court), to require a jury to be summoned to try an action unless the amount claimed exceeds five pounds and the claim or counter-claim, if any, is one in the case of which under the provisions of this Act either party would, if it were tried in the High Court, be entitled to a trial with a jury: Limitation of jury trials in the county courts. 51 & 52 Vict. c. 43.

Provided that if it appears to the judge that any action or counter-claim is more fit to be tried with a jury than without a jury he may in his discretion on the application of either party made in accordance with rules of court order accordingly.

4. Where under any statute, rule, or practice, in force immediately before the commencement of this Act, any civil action, counter-claim, issue, cause, or matter in any inferior court of civil jurisdiction other than a county court, would be tried with a jury, that action, counter-claim, issue, cause, or matter shall be tried by the judge of the court, or one of the judges thereof if there be more than one, without a jury: Limitation of jury trials in other inferior courts of civil jurisdiction.

Provided that—

- (a) where by reason of the nature of the proceeding or any allegation therein either party would if the proceedings were in the High Court be entitled under the provisions of this Act to a trial with a jury, either party shall on application for that purpose made in accordance with rules of court be entitled to a trial with a jury; and
- (b) if the judge, or one of the judges of the court, is of opinion that the action, counter-claim, issue, cause,

or matter is more fit to be tried with a jury than without a jury, he may in his discretion on an application made by either party in accordance with rules of court order accordingly.

Extension of
age for jury
service.
6 Geo. 4. c. 50.

5. Sixty-five years shall be substituted in section one of the Juries Act, 1825, for sixty years as the age at which liability to serve upon a jury shall cease, and that section shall have effect accordingly.

Power by
Order in
Council to
modify statu-
tory provisions
relating to the
preparation and
publication of
jury lists.
25 & 26 Vict.
c. 107.

6.—(1) His Majesty may by Order in Council modify in such manner as he thinks advisable for the purpose of avoiding unnecessary expense and labour any of the provisions of the Juries Act, 1825, or the Juries Act, 1862, as to the preparation of the lists of men qualified and liable to serve on juries, so as to provide that any such list may be prepared by altering or supplementing the last previous list and as to the place and manner of publication thereof.

(2) Any Order in Council made under this section may be varied or revoked by any subsequent Order so made and shall cease to have effect on the expiration of this Act.

Power to hold
coroner's
inquest with-
out jury.

50 & 51 Vict.
c. 71

7.—(1) Subject to the provisions of this section, a coroner within whose jurisdiction the dead body of a person is lying, if he is satisfied that having regard to all the circumstances of the case it is proper so to do, may, in lieu of summoning a jury in manner required by section three of the Coroners Act, 1887, for the purpose of inquiring into the death of that person, hold an inquest on the body without a jury :

Provided that—

(a) the foregoing provision shall not apply in any case in which the death has occurred in prison or in such place or under such circumstances as to require an inquest under any Act other than the Coroners Act, 1887 ; and

(b) if before proceeding to hold an inquest or in the course of holding an inquest without a jury there appears to the coroner to be any reason for summoning a jury he may, and, if there appears to him to be any reason to suspect that the deceased came by his death by murder or manslaughter, he shall proceed to summon a jury in the manner required by the Coroners Act, 1887.

(2) The procedure at an inquest, or at any part of an inquest, which is held without a jury shall be in accordance with existing practice and the provisions of the Coroners Act, 1887, subject to such modifications as are rendered necessary by the absence of a jury or as the Lord Chancellor may prescribe. The inquisition on an inquest which, or any part of which, is held without a jury shall be in such form as the Lord Chancellor may prescribe, and where the whole inquest is held

without a jury the inquisition shall be under the hand of the coroner alone.

(3) Where an inquest or any part of an inquest is held without a jury anything done at the inquest or at that part of the inquest by or before the coroner alone shall be as validly done as if it had been done by or before the coroner and a jury.

8.—(1) This Act may be cited as the Juries Act, 1918.

(2) This Act shall not extend to Scotland or Ireland.

(3) This Act shall have effect during the continuance of the present war and for a period of six months thereafter.

Short title,
extent, and
duration.

CHAPTER 24.

An Act to enable Companies and other bodies to give Financial Assistance to Flax Companies.

[30th July 1918.]

WHEREAS the extension of the cultivation of flax and the provision of increased supplies thereof is essential for various purposes of national importance, including purposes connected with the present war, and it is expedient that the giving of financial assistance to companies concerned in such cultivation and provision should be facilitated :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Any company, association or body of persons, notwithstanding anything contained in any Act, Order or instrument, by or under which it is constituted or regulated, shall, subject to the consent of the Board of Trade, have power, if so determined by a resolution passed at a general meeting of the company, association, or body of persons—

Power for
companies &c.
to give finan-
cial assistance
to flax com-
panies and to
borrow for
that purpose.

(i) during the continuance of the present war, and a period of twelve months thereafter—

(a) to subscribe for, take, purchase, or otherwise acquire, hold, sell, and dispose of shares, stock, or other securities of any limited liability company formed or to be formed, and having for its principal object the cultivation of flax or the provision of supplies thereof, or the promotion of such cultivation or provision ;

(b) to lend money to any such company ;

(c) to guarantee, or join with others in guaranteeing, any debts, obligations, or liabilities, present or future, of any such company ;